

SENATE No. 313

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act strengthening transitional planning and increasing accountability for persons with disabilities and their families.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>2/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/20/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/20/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>2/21/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/26/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/28/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/20/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/28/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>5/6/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>6/5/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>11/18/2025</i>

SENATE No. 313

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 313) of Joanne M. Comerford, Hannah Kane, James K. Hawkins, Sal N. DiDomenico and other members of the General Court for legislation to strengthen transitional planning for persons with disabilities after high school graduation or the age of twenty-two. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act strengthening transitional planning and increasing accountability for persons with disabilities and their families.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 12C of chapter 71B, as appearing in the 2022 Official Edition, is
2 hereby amended by striking out, in line 74, the word “six” and inserting in place thereof the
3 following figure:- 12

4 SECTION 2. Said section 12C of said chapter 71B, as so appearing, is hereby further
5 amended by adding the following paragraph:-

6 The chair of the transitional advisory committee, in consultation with the members of
7 said committee, shall submit an annual report to the house and senate committees on ways and
8 means, the joint committee on children, families and persons with disabilities and the clerks of
9 the house and senate with the following aggregated data broken down by county:

(i) the number of disabled persons who have been receiving special education services under the provisions of this chapter who are anticipated to turn 22 or graduate from high school, whichever occurs first, for each of the following 2 years and who are anticipated to require habilitative services in Massachusetts;

(ii) the number of such disabled persons who are anticipated to turn 22 for each of the following 2 years or graduate from high school, whichever occurs first, and who are anticipated to require residential placement through the department of developmental services; and

(iii) the number of such disabled persons who are anticipated to turn 22 or graduate from high school, whichever occurs first, for each of the following 2 years and who are anticipated to require services from one or more member agencies of the transitional advisory committee, further broken down by said member agencies.

SECTION 3. (a) Notwithstanding any general or special law to the contrary, there is hereby established a special commission to review current practices and gaps in services and prepare a comprehensive plan to address the complex and growing number and needs of disabled persons whose entitlement to services under special education programs has terminated or will terminate as a result of such person's graduation from high school or attainment of age 22, hereafter referred to as transition age youth, and to improve transition planning and outcomes for transition age youth and their families or guardians. The commission shall consist of: the secretary of health and human services, or a designee, and 1 representative of the transitional advisory committee within the bureau of transitional planning, who shall serve as co-chairs; 1 member who shall be a member of the senate to be appointed by the senate president; 1 member who shall be a member of the house of representatives to be appointed by the speaker of the

house of representatives; 1 member to be appointed by the minority leader of the senate; 1 member to be appointed by the minority leader of the house of representatives; the chairs of the joint committee on children, families and persons with disabilities; the secretary of the executive office of education, or a designee; 1 member representing a program that serves transition age youth; 1 member representing The Arc of Massachusetts; and 1 member who is a transition age youth or their family member.

(b) The plan shall include, but not be limited to, strategies and solutions for: (i) ensuring more frequent and transparent agency communication with transition age youth and the families and guardians of transition age youth; (ii) increasing awareness of programs and services available both during the transition process and after the transition to adult service; (iii) enhancing the turning 22 service coordinator program within the department of developmental services to ensure that plans reflect the desires and needs of transition age youth and their families or guardians; (iv) improving the referral program established through chapter 688 of the acts of 1983 to increase transparency, advance planning and communication between all involved parties; (v) facilitating better information sharing between members of the bureau of transitional planning with the goal of better serving transition age youth and their families or guardians prior to, during and after their transition to adult services; (vi) limiting or eliminating the number of transition age youth who do not have a residential placement, if required by their transition plan, identified at least 6 months before their transition to adult services and ensuring that, when possible, if a residential placement is not immediately available at transition age, the transition age youth can remain in their current placement until a suitable alternative is secured; (vii) increasing options and opportunities for transition age youth in the adult residential system and their families or guardians to live reasonably near one another, provided that the transition

age youth and the youth's family members or guardians want to live near each other; (viii) addressing any unique transition challenges for transition age youth who are leaving the care of the department of children and families; (ix) promoting, when possible, geographic equity in services provided across the commonwealth including, but not limited to, habilitative services, residential living opportunities, employment and day program supports and family support; and (x) creating regular review processes within the members of the bureau of transitional planning regarding the efficacy and results of any transition age services provided by those same member organizations.

(c) The executive office of health and human services shall submit a copy of the plan, including any budgetary or statutory needs, to the executive office of labor and workforce development, the executive office of education, the clerks of the house and senate, the house and senate committees on ways and means, the joint committee on education and the joint committee on children, families and persons with disabilities not later than 1 year after the effective date of this act.